

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Ray G. Jurado
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Rivas, Marcos
CDC No.: AK9268
Case No.: BA388327-01
Date of Sentence: 1/5/2012

Dear Honorable Ray G. Jurado:

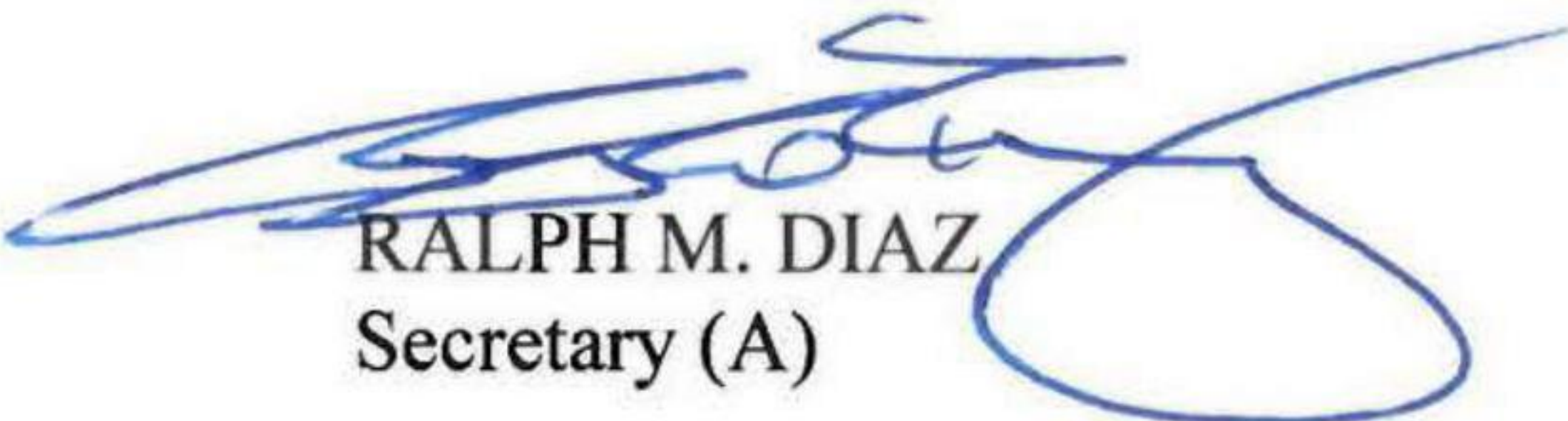
The purpose of this letter is to provide the court with authority to resentence Marcos Rivas pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Rivas was sentenced in 2012, and was convicted of section 245, subdivision (A)(2), ASSAULT WITH A FIREARM. The trial court sentenced inmate Rivas on 1/5/2012. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Rivas's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Rivas's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM

[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: MARCOS RIVAS	DOB: 08-29-95	CASE NUMBER BA388327-01
AKA: CII NO.: 031020431 BOOKING NO.: JUVY	☐ NOT PRESENT	JUDGE RAY G. JURADO
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT	☐ AMENDED ABSTRACT	
DATE OF HEARING 01-05-12	DEPT. NO. 033	PROBATION NO. OR PROBATION OFFICER X2083227
CLERK GISELA ROBLES	REPORTER YOLANDA HUFF	
COUNSEL FOR PEOPLE LIZA T. TOM		COUNSEL FOR DEFENDANT LAURI BRENNER

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	TIME IMPOSED	
						JURY	COURT	PLEA		YRS.	MOS.
03	PC	245(A)(2)	ASSAULT WITH A FIREARM	2011	01-05-12			X	L	2	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	TOTAL
03	12022.7(A) PC	3	12022.5 PC	3	186.22(B)(1)(C) PC	10	16

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$ 200.00 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☐ \$ _____ / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Security Fee of \$ 40.00 per PC 1465.8. ☒ Criminal Conviction Assessment of \$ 30.00 per GC 70373.

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify): _____

7. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin **HISPANIC**

8. Other orders (specify): **THE COURT ORDERS THE DEFENDANT TO REMAIN HOUSED AT (DJJ) UNTIL HIS 18TH BIRTHDAY AND AFTER TRANSFERRED TO STATE PRISON TO SERVE THE REMAINDER OF THE SENTENCE IMPOSED.**

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: 18

10. ☐ This sentence is to run concurrent with (specify): _____

11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify): _____

DATE SENTENCE PRONOUNCED 01-05-12	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS: 305	ACTUAL LOCAL TIME 266	LOCAL CONDUCT CREDITS 39	☐ 4019 ☐ 2933.1	TIME SERVED IN STATE INSTITUTION
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13. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ Other (specify): _____

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE DEANNA WILLIAMS	DATE 01-10-12
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